

TENTATIVE RULING

David Rosas Meza
v.
Volkswagen Group of America, Inc.
25CV005977

Plaintiff's Motion to Compel Further Responses to Request for Production, Set One

Hearing Date: July 31, 2026

The motion of Plaintiff David Rosas Meza ("Plaintiff") to compel Defendant Volkswagen Group of America, Inc. ("Defendant") to further respond to Plaintiff's Request for Production of Documents, Set One ("RPD") is **DENIED**. The motion is moot. Defendant served verified supplemental responses to RPDs 1 to 31 on July 20, 2026, and represents that all responsive documents within its possession, custody, or control have been produced. [Kouvabina Decl. at ¶¶ 10-11 and Exh. G.] Plaintiff did not file a Reply, and the deadline to do so lapsed on July 24, 2026. [Code Civ. Proc. § 1005.] The absence of any Reply identifying remaining deficiencies supports the conclusion that the issues raised in the motion have been resolved.

Although Defendant in its opposition raises procedural defects—particularly regarding the adequacy of Plaintiff's meet-and-confer efforts and the alleged prematurity of the motion—the Court need not reach these issues because the discovery dispute has been cured through supplemental responses and production.

Plaintiff did not request monetary sanctions. Even if he did, the Court would decline to impose them, given the shortcomings in Plaintiff's meet-and-confer efforts [Kouvabina Decl. at ¶¶ 3-9 and Exhs. A-F], and the failure to update the Court after receiving supplemental responses.

Therefore, Plaintiff's motion is **DENIED**. Defendant shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED**. You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.